

Here, the Court finds that Plaintiff properly provided notice based on the fact that it only sought injunctive relief for its CLRA claim in the original complaint filed on January 23, 2026. (Complaint, ¶¶ 142-152.) Upon the filing of the FAC on February 24, 2026, after 30 days, Plaintiff updated the CLRA claim to include a request for damages. (FAC, ¶¶ 143-153.) This practice was approved in *Morgan v. AT&T Wireless Services, Inc.* (2009) 177 Cal.App.4th 1235, 1260-1261.)

Regarding Defendant's argument that the fraud claim supporting the CLRA claim is insufficiently pled because it lacks specificity, the Court disagrees. "These deceptive practices proscribed in the CLRA include the concealment or suppression of material facts. [Citations.] This is because fraud or deceit encompasses the suppression of a fact by one who is bound to disclose it, or the suppression of a fact that is contrary to a representation that was made." (*Collins v. eMachines, Inc.* (2011) 202 Cal.App.4th 249, 255.) Here, because Plaintiff has properly stated a claim for fraudulent concealment, which contains a heightened pleading requirement, the Court finds that the same allegations support his CLRA claim.

Ruling

Based on the analysis above, the Court **OVERRULES** Defendant's demurrer to the third and fourth causes of action in Plaintiff's First Amended Complaint. Defendant must file its Answer or other responsive pleading within 15 days of service of notice of entry of this order.

10. 9:00 AM CASE NUMBER: C26-00255
CASE NAME: DANIEL HOGAN VS. GENERAL MOTORS, LLC
STRIKE PUNITIVE DAMAGES RE 1ST AMENDED COMPLAINT
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:

Defendant General Motors LLC ("Defendant") brings this motion to strike punitive damages ("Motion") from the First Amended Complaint ("FAC") of plaintiff Daniel Hogan ("Plaintiff").

For the reasons discussed below, the Court **DENIES** Defendant's Motion.

Meet and Confer

The meet and confer requirement has been satisfied. (Ryan Kay Decl., ¶ 2; Code Civ. Proc., § 435.5, subd. (a)(3)(A).)

Legal Standard

"The court **may**, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436, subds. (a), (b), emphasis added.)

Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be

based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc., § 437, subds. (a) and (b).) “A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint’s allegations, which are assumed to be true.” (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court’s discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Background: Facts Alleged in FAC

Plaintiff filed this action on January 23, 2026, and filed the first amended complaint (“FAC”) on February 24, 2026. (FAC, p. 1.) The FAC alleges claims against Defendant for: (1) breach of implied warranty of merchantability under the Song-Beverly Act; (2) breach of express warranty under the Song-Beverly Act; (3) fraudulent concealment; and (4) violation of Civil Code section 1750 et seq., Consumers Legal Remedies Act (“CLRA”).

On August 15, 2022, Plaintiff purchased a new 2022 Chevrolet Silverado from Concord Chevrolet for personal, family, or household purposes. (FAC, ¶¶ 5, 7.) The vehicle came with a warranty. (*Id.* at ¶ 9.) Plaintiff took the vehicle to Defendant’s authorized service and repair facilities on multiple occasions to address nonconformities. (*Id.* at ¶ 11.) Each time, Defendant’s authorized service and repair facility represented that they conformed the vehicle to the warranties and that the defects, malfunctions and nonconformities had been repaired. (*Id.* at ¶ 13.) The engine sold with Plaintiff’s vehicle was defective and Defendant knew that kind of engine was defective since early 2018. (*Id.* at ¶ 18.) The defects are caused by issues with the fuel system, emissions system, cooling system or internal rotating components, which lead to a sudden loss of power, stalling, or other impairments while the vehicle is in operation. (*Id.* at ¶ 29.)

Between March 9, 2023, and February 5, 2026, Plaintiff took the vehicle in for repairs on eight separate occasions and despite Defendant’s attempts to fix it, the vehicle continues to experience the same dangerous and persistent issues caused by a defective engine. (FAC, ¶ 42.) At the time of the vehicle sale, Defendant knew that the vehicle was equipped with a defective engine yet failed to inform Plaintiff of this. (*Id.* at ¶ 43.) Had Plaintiff been advised of the defective engine he would not have purchased it or would have paid significantly less. (*Id.* at ¶ 44.)

Plaintiff seeks replacement or restitution, incidental damages, **punitive damages**, injunctive relief, attorney fees, costs of suit, the difference in value of the vehicle as accepted and the value the vehicle could have had if it had been as warranted, remedies provided in Chapters 6 and 7 of Division 2 of the Commercial Code, and prejudgment interest. (FAC, p. 43.)

Discussion

Moving Papers

Defendant first points out that Plaintiff’s Song-Beverly Consumer Warranty Act does not support a claim for punitive damages. (Motion, p. 4.) Defendant then proceeds to argue that the FAC fails to state facts sufficient to support the recovery of punitive damages. (*Id.* at pp. 4-6.) Defendant cites Civil Code section 3294 for the definitions of malice, oppression, and fraud. (*Id.* at p. 5 [“ ‘Fraud’

means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.”].)

Defendant cites to *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 168 for the proposition that “When facts supporting oppression, fraud, or malice have not been properly alleged in a complaint, the trial court should grant the motion to strike.” (Motion p. 5.) Defendant contends that the FAC does contain any factual allegations to show fraud on the part of Defendant. (*Id.* at pp. 5-6.)

Defendant finally argues that Plaintiff’s purported claims for fraudulent concealment and violation of the Consumers Legal Remedy Act (“CLRA”) fail to state sufficient facts to constitute causes of action, so they cannot support punitive damages in this case. (*Id.* at p. 6.)

Opposition

Plaintiff argues that motions to strike are disfavored and should be used sparingly. (Opposition, p. 2.) Plaintiff cites *PH IL Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683, for its quote that “such use of the motion to strike should be cautious and sparing. We have no intention of creating a procedural ‘line item veto’ for the civil defendant.” (Opposition, p. 2.)

Plaintiff further argues that his punitive damages are being sought pursuant to his fraudulent concealment and CLRA claims, which give rise to claims for punitive damages. (Opposition, p. 3.) Plaintiff contends that punitive damages need not be pled with specificity and that he did in fact plead facts supporting his prayer for punitive damages. (*Id.* at pp. 4-7.) Plaintiff further contends that the FAC sufficiently alleges fraudulent concealment and CLRA claims and that if the court overrules Defendant’s demurrer, then it should likewise deny Defendant’s motion to strike. (*Id.* at p. 7.)

Reply

On reply, Defendant argues that Plaintiff cannot plead sufficient facts for each essential element of the fraud claims and thus may not recover punitive damages. (Reply, pp. 1-4.) Defendant points out that the punitive damages must be proven by clear and convincing evidence and contends that conduct must be despicable before punitive damages can be awarded. (*Id.* at pp. 4-5.) Defendant argues that even ultimate facts must be facts and here Plaintiff has not pled facts to show that punitive damages are allowable. (*Id.* at pp. 5-7.)

[FOOTNOTE: The Court notes that the parties refer to the vehicle at issue as an Escalade in the reply, despite the vehicle at issue being alleged in the FAC to be a 2022 Chevrolet Silverado. (Reply, pp. 3, 5, 6; FAC, ¶ 5.)]

Analysis

“A fraud cause seeking punitive damages need not include an allegation that the fraud was motivated by the malicious desire to inflict injury upon the victim. The pleading of fraud is sufficient.” (*Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 610; Weil & Brown, Civil Procedure Before Trial, [The Rutter Group 2026] ¶6:165 [“A properly pleaded *fraud* claim will itself support recovery of punitive damages. No allegations of ‘malice’ or intent to injure plaintiff are required because fraud is an *alternative basis for recovery*.”] emphasis in original.)

Here, in the analysis of the demurrer filed at the same time as the instant Motion, the Court analyzed whether Plaintiff properly pleaded his fraudulent concealment claim and found it properly pled.

With respect to how to plead a fraudulent concealment claim with the requisite specificity, the California Supreme Court has provided the following guidance:

California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim. [Citations.] . . . If the duty allegedly arose by virtue of the parties' relationship and the defendant's exclusive knowledge or access to certain facts . . . the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) the defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission.

(Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 43-44.)

Here, regarding element one, the content of the omitted facts, paragraph 36 describes that the defective engine was preventing the smog sensors from resetting. (FAC, ¶ 36.) The Court finds Plaintiff's allegations as to element one sufficient for pleading purposes. Regarding element two, the defendant's awareness of the materiality of those facts, paragraph 79 alleges that "Defendant failed to provide notice of the Defective Engine in vehicle sales materials distributed by Defendant to customers, knowing full well that the defect was unrepairable and posed safety risks to Plaintiff." (FAC, ¶ 79.) The Court finds Plaintiff's allegations as to element two sufficient for pleading purposes. Regarding element three, the inaccessibility of the facts to the plaintiff, paragraph 68 alleges that "Defendant has superior knowledge of the Defective Engine because it has access to information (and can interpret information) that average, reasonable consumers, like Plaintiff, do not. None of this information is available to average, reasonable consumers like Plaintiff, nor did Defendant publicly or privately disclose any of this information to Plaintiff." (FAC, ¶ 68.) The Court finds Plaintiff's allegations as to element three sufficient for pleading purposes.

Regarding element four, the general point at which the omitted facts should or could have been revealed, paragraph 74 alleges that this should have happened prior to Plaintiff's purchase of the vehicle, or during his research, test drive, or sales process, or at the least at any point the vehicle was presented to Defendant for repair. (FAC, ¶ 74.) The Court finds Plaintiff's allegations as to element four sufficient for pleading purposes. Regarding element five, justifiable and actual reliance, either through action or forbearance, based on the defendant's omission, paragraphs 32 and 33 allege that:

At no time was Plaintiff told or made aware, either publicly or privately, that the Vehicle was equipped with the Defective Engine and had the problems associated therewith. These omissions were material to Plaintiff's decision to purchase the Vehicle. Had Defendants and/or their authorized agents publicly or privately disclosed the Defective Engine before Plaintiff purchased the Vehicle, Plaintiff would have been aware of such disclosures and would not have purchased the Vehicle.

(FAC, ¶¶ 32-33.)

The Court finds Plaintiff's allegations as to element five sufficient for pleading purposes. Additionally, the Court finds that the intent to defraud is properly alleged at paragraphs 21 and 117 of the FAC. (FAC, ¶¶ 21 ["Defendants' acts were done maliciously, oppressively, deliberately, with intent to defraud, and in reckless disregard of Plaintiffs rights and well-being, in part to enrich themselves at the expense of consumers."]; 117 ["Defendants intentionally concealed material information regarding the Defective Engine to drive up sales and maintain their market power. Defendants' acts were done maliciously, oppressively, deliberately, with intent to defraud, and in reckless disregard of Plaintiffs rights and well-being. Defendants' acts were perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent, were done to enrich themselves at the expense of consumers, gain commercial advantage over competitors, and to drive consumers away from consideration of competitor's vehicles."].)

Plaintiff has properly pled his fraudulent concealment claim with the requisite specificity and thus the punitive damages prayer will be allowed to remain.

Ruling

A properly pled fraud claim supports the punitive damages allegation. Accordingly, the Court **DENIES** Defendant's motion to strike punitive damages allegations from the FAC.

11. 9:00 AM CASE NUMBER: C26-00479

CASE NAME: EVAN OWENS VS. ELIZABETH LAYN

1ST AMENDED COMPLAINT

FILED BY: LAYN, ELIZABETH G.

TENTATIVE RULING:

On the Court's own motion, the hearing on the demurrer is continued to **9:00 a.m. on September 4, 2026.**

12. 9:00 AM CASE NUMBER: C26-00637

CASE NAME: WILLIAM DESENA VS. WALNUT CREEK COMMUNITY HEALTHCARE, LLC

RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY JUSTIN VITUG, ESQ.

FILED BY: DESENA, WILLIAM

TENTATIVE RULING:

The unopposed motion of **Justin Vitug and Javaheri & Yahoudai** to be relieved as counsel for **Plaintiff William Desena** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and